

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3709

By: Caldwell (Chad)

AS INTRODUCED

An Act relating to higher education; requiring state educational institutions fund a general maintenance fund when constructing new buildings; providing permissible uses for a general maintenance fund; directing the State Regents for Higher Education to withhold state-appropriated funds for failure to comply; requiring the State Regents to conduct annual audits for compliance; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 4316 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. Any state educational institution within The Oklahoma State System of Higher Education that constructs any building shall place an amount equal to five percent (5%) of the total construction costs in a general maintenance fund maintained by the state educational institution.

B. The general maintenance fund shall be utilized for general upkeep or maintenance of buildings owned by the state educational

1 institution. The funds placed in the general maintenance fund shall
2 not be limited or earmarked for the new construction which caused
3 the funds to be placed in the fund.

4 C. The funds required to be placed in a general maintenance
5 fund by subsection A of this section shall be in addition to all
6 other funds the state educational institution already allocates to a
7 general maintenance fund and shall not supplant or replace existing
8 funding levels.

9 D. The State Regents for Higher Education shall withhold all
10 state-appropriated funds from any state educational institution
11 which fails to comply with subsection A of this section until the
12 state educational institution comes into compliance with subsection
13 A of this section. The State Regents shall conduct annual audits of
14 state educational institutions to ensure compliance with this
15 section.

16 SECTION 2. This act shall become effective July 1, 2026.

17 SECTION 3. It being immediately necessary for the preservation
18 of the public peace, health or safety, an emergency is hereby
19 declared to exist, by reason whereof this act shall take effect and
20 be in full force from and after its passage and approval.

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